

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

CASE NO. 2019-6642

NON-DISCIPLINARY INTERIM CESSATION OF PRACTICE AGREEMENT

IN THE MATTER OF THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE
STATE OF COLORADO OF MARIANNA CARNES, LICENSE NO. LPC.5548,

Respondent.

IT IS HEREBY STIPULATED and agreed by and between State Board of Licensed Professional Counselor Examiners ("Board") and Marianna Carnes ("Respondent") (collectively "the parties"), as follows:

1. Respondent was licensed to practice as a Licensed Professional Counselor ("LPC") in the State of Colorado on January 25, 2010, and was issued license number LPC.5548, which Respondent has held continuously since that date.
2. The Board has jurisdiction over Respondent and over the subject matter of this proceeding.
3. On March 6, 2020, the Board reviewed materials relating to case number 2019-6642, including information that Respondent failed to notify the Board of a condition that affects the Respondent's ability to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under Respondent's care.
4. Respondent denies any and all allegations of a violation of the Mental Health Practice Act. Respondent voluntarily enters into this agreement to facilitate further evaluation of the issues related to Board case number 2019-6642.
5. Based upon the information and the totality of the circumstances, Respondent has offered to enter into an agreement for Respondent not to practice as an LPC in the interim as set forth in more detail below, and the Board has authorized the parties to enter into an agreement for Respondent to limit her practice as a LPC.
6. The parties have agreed to enter into this Non-Disciplinary Interim Cessation of Practice Agreement ("Interim Agreement") pending further evaluation and investigation of Respondent to determine what further actions, if any, are warranted. Any summary suspension that could be imposed by the Board is hereby stayed pursuant to the terms of this Interim Agreement.

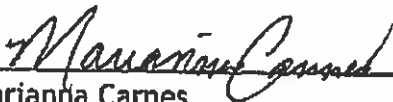
7. Respondent agrees that she will not perform any act requiring a license issued by the Board while this Interim Agreement is in effect.
8. This Interim Agreement shall remain in effect until such time as the parties reach a final disposition of this case or, in the event summary suspension proceedings are initiated, an order for summary suspension enters.
9. The Board agrees that it will not institute summary suspension proceedings while this Interim Agreement is in effect so long as the Respondent remains in compliance with this Interim Agreement and so long as the Board does not learn of new information that would indicate that summary suspension is warranted.
10. Nothing in this Interim Agreement shall constitute disciplinary action, a finding that Respondent has engaged in unprofessional conduct, or any admission by Respondent of unprofessional conduct. There have been no final determinations regarding Respondent's professional competence or professional conduct. Nothing in this Interim Agreement shall constitute final action as defined in section 24-4-102(1), C.R.S.
11. Nothing in this Interim Agreement shall preclude the Board from initiating disciplinary action pursuant to section 12-245-224, C.R.S., or issuing a Final Agency Order while this Interim Agreement is in effect.
12. Respondent understands that Respondent has the right to be represented by counsel of Respondent's choice in this matter, and Respondent has voluntarily chosen to proceed without representation.
13. The terms of this Interim Agreement were mutually negotiated and determined.
14. Both parties acknowledge that they understand the legal consequences of this Interim Agreement, both parties enter into this Interim Agreement voluntarily, and both parties agree that no term or condition of this Interim Agreement is unconscionable.
15. This Interim Agreement and all its terms constitute a valid board order for purposes of section 12-245-224(1)(b), C.R.S.
16. Invalidation of any portion of this Interim Agreement by judgment or court order shall in no way affect any other provision, which provision shall remain in full force and effect.
17. This Interim Agreement shall be effective upon signature by Respondent. Respondent acknowledges that the Board may choose not to accept the terms of this

Interim Agreement and that if the Interim Agreement is not approved by the Board and signed by a Board member or other authorized person, it is void.

18. This Interim Agreement constitutes the entire agreement between the parties, and there are no other agreements or promises, written or oral, which modify, interpret, construe, or affect this Interim Agreement.

19. All costs and expenses incurred by Respondent to comply with this Interim Agreement shall be the sole responsibility of Respondent, and shall in no way be the obligation of the Board.

20. Upon becoming effective, this Interim Agreement shall be open to public inspection and shall be publicized pursuant to the Board's standard policies and procedures. While this Interim Agreement does not constitute discipline against Respondent's license, it shall be reported to the National Practitioner Data Bank and as otherwise required by law.


Marianna Carnes

Date: 03/18/20

THE FOREGOING Non-Disciplinary Interim Cessation of Practice Agreement is effective upon signature by Respondent, above, and is approved this 19th day of March, 2020.

FOR THE COLORADO STATE BOARD OF
LICENSED PROFESSIONAL COUNSELOR
EXAMINERS


Wendy Anderson, Interim Program
Director
By delegated authority of the Board